

TRICARE PROFILE SHEET

W9/LEGAL BUSINESS NAME	RadiantCare Radiation Oncology
FEDERAL TAX ID #	912018691
PRIMARY PHYSICAL ADDRESS LINE 1	4525 3rd Ave SE
PRIMARY PHYSICAL ADDRESS LINE 2	
PRIMARY PHYSICAL CITY STATE ZIP	Lacey WA 98503
PRIMARY CONTACT PERSON	
PRIMARY PHONE/ AUTHORIZATION FAX	360-412-8960 360-412-8970
PRIMARY EMAIL	
CONTRACTOR NAME	
CONTRACTOR EMAIL ADDRESS	
BILLING ADDRESS LINE 1	
BILLING ADDRESS LINE 2	
BILLING CITY STATE ZIP	
BILLING CONTACT PERSON	
BILLING PHONE/FAX	
BILLING EMAIL	

TRICARE GROUP PRACTITIONER CONTRACT

PARTIES

Regence BlueShield("Network Subcontractor"), a Washington nonprofit corporation, and RadiantCare Radiation Oncology ("Provider"). Network Subcontractor and Provider are referred to individually herein as a Party and collectively as the Parties in this Agreement on behalf of itself and certain Individual Providers.

EFFECTIVE DATE

This contract (the "Agreement") shall be effective (the "Effective Date") on the first day of the month following verification and approval of Provider's credentials by Network Subcontractor and TriWest Healthcare Alliance Corp. ("TriWest"). The Effective Date of this Agreement is _____ (to be inserted by TriWest after verification and approval of Provider's credentials).

RECITALS

- A. Network Subcontractor has subcontracted with TriWest to establish a provider network for TriWest in conjunction with TriWest's contract with the Department of Defense to provide managed health care services to TRICARE Beneficiaries.
- B. Provider is a health care provider licensed by and in good standing with the State of Washington, and desires to participate in Network Subcontractor's network for TRICARE Beneficiaries.
- C. TriWest is contracted by the Department of Defense to administer the TRICARE program in the West Region.

Therefore, the Parties agree as follows:

AGREEMENT

I. DEFINITIONS

Active Duty - Full-time duty in the Uniformed Services of the United States. It includes duty on the active list, full-time training duty, annual training duty, and attendance while in the active Military Service, at a school designated as a Service school by law or by the Secretary of the Military Department concerned.

Authorization - Approval for requested services, procedures or admission that is obtained prior to services being rendered.

Clean Claim - A claim which does not require coordination of benefits information, accident information and/or subrogation information, medical records or any other information to adjudicate the claim.

Copayments - Deductibles, copayments and/or cost sharing amounts payable by a TRICARE Beneficiary, as set forth in the TRICARE Provider Handbook.

Covered Services - Services, items and supplies for which benefits are available to TRICARE Beneficiaries in accordance with the rules, regulations, policies and instructions of TRICARE Management Activity.

Electronic Data Interchange (EDI) - The transfer of claims data in a standard electronic format.

Emergency Care - TRICARE defines an emergency medical condition as a condition manifesting itself by "acute symptoms of sufficient severity, including severe pain, such that a prudent layperson could reasonably expect the absence of medical attention to result in placing the beneficiary's health in serious jeopardy, serious impairment to bodily function, or serious dysfunction of any bodily organ or part."

Individual Provider - A professional provider employed by Provider or billing for services under Provider's Tax Identification Number (TIN) and subject to all applicable TRICARE rules and regulations and terms of the Agreement.

Institution - A general, acute-care hospital, a specialty hospital such as a behavioral health hospital, or a skilled nursing facility.

Medically Necessary - The appropriate and necessary treatment of the patient's condition, illness or injury according to accepted standards of medical practice and TRICARE policy.

MTF - Military Treatment Facility.

Network Provider - A provider who has contracted to render Covered Services to TRICARE Beneficiaries.

Primary Care Manager (PCM) - A provider who is designated as a Primary Care Manager within a Prime Service Area (PSA) and may be selected by a TRICARE Prime beneficiary or assigned by an MTF commander to provide primary care services. PCMs include: Internists, Family Practitioners, Pediatricians, General Practitioners, Obstetricians/Gynecologists, Physician Assistants, Nurse Practitioners, or Certified Nurse Midwives.

Prime Service Area (PSA) - A designated geographic area defined by TRICARE Management Activity (TMA) in which provider networks are established and maintained for the purpose of allowing eligible beneficiaries to enroll in TRICARE Prime.

Reimbursement Rates - The rates set forth in Exhibit 1.

Subcontract - A contract entered into by Provider which delegates functions or responsibilities under this Agreement for which Provider submits claims.

Subcontractor - An individual or entity who is not an employee of, or owned by, or part of the Provider's business entity and has contracted with Provider in order to assume functions or responsibilities under this Agreement for which Provider submits claims.

Tail Insurance - When a provider has professional liability insurance on a claims-made basis (as opposed to an occurrence-based policy), tail insurance provides coverage after the termination of the claims-made insurance policy for losses resulting from claims that are filed after the expiration of the claims-made insurance policy.

TRICARE (formerly CHAMPUS) - The Department of Defense's managed health care program for active duty military, active duty service families, retirees and their families, and other beneficiaries. Under TRICARE, there are three primary options for health care: TRICARE Prime is a health maintenance organization (HMO) type option, in which TRICARE Beneficiaries enroll and receive enhanced primary and preventive benefits at a reduced cost share. Medical care is coordinated by a PCM. TRICARE Extra is the Preferred Provider Option (PPO) under TRICARE, in which benefits are provided through Network Providers reducing the TRICARE Beneficiary's cost share. TRICARE Standard is similar to a traditional indemnity plan. There are other options available under TRICARE for specific populations.

TRICARE Beneficiary - Any person eligible to receive Covered Services under the rules, regulations, policies and instructions of TRICARE Management Activity (TMA). TRICARE Beneficiaries may include, but are not limited to, Active Duty members of the Armed Forces of the United States of America and their dependents, retired members of the Armed Forces of the United States of America and their dependents, non-Department of Defense Uniformed Services (the Public Health Service, the United States Coast Guard, and the National Oceanic & Atmospheric Administration) and certain North Atlantic Treaty Organization beneficiaries.

TRICARE/CHAMPUS Maximum Allowable Charge (CMAC) - The reimbursement methodology for services rendered to TRICARE Beneficiaries as outlined in the TRICARE Reimbursement Manual. CMAC includes TRICARE-developed pricing (updated by TMA), the applicable Durable Medical

Equipment Regional Carrier (DMERC) fee schedules for Healthcare Common Procedure Coding System (HCPCS) National Level II codes (updated by the Centers for Medicare and Medicaid Services (CMS) and adopted by TriWest on a quarterly basis) and pricing developed through the mechanism outlined in the TRICARE Reimbursement Manual for new codes and codes not priced by the TRICARE Management Activity. Pricing updates and changes are announced on the TriWest website.

TRICARE Management Activity (TMA) - Formerly known as OCHAMPUS and TRICARE Support Office - Agency within the Department of Defense responsible for overseeing TRICARE.

TRICARE Provider Handbook - Manual of operational policies and protocols for TRICARE that will be made available to Provider.

TRICARE Reasonable Cost Methodology—Reasonable cost is based on the actual cost of providing services and excluding any costs that are unnecessary in the efficient delivery of services covered by the program. TMA shall calculate the overall CCR utilizing data obtained from the hospitals most recently filed Medicare cost report as of July 1 of each year.

TriWest - TriWest Healthcare Alliance Corp. and, as applicable, its subcontractors.

Wisconsin Physician Services (WPS) - TriWest's fiscal intermediary.

II. TERM; TERMINATION

- A. Term - This Agreement shall commence upon the Effective Date and continue for an initial two year term. Thereafter, both Parties agree that the term of this Agreement shall automatically be extended for one-year periods until TriWest no longer has a contract to administer TRICARE in the geographic region(s) in which Provider renders services, or unless terminated by either Party as permitted by this Agreement.
- B. Termination without Cause - Either Party may terminate this Agreement at any time without cause upon at least ninety (90) days' prior written notice to the other Party.
- C. Immediate Termination - Network Subcontractor shall have the right to immediately terminate this Agreement or to terminate an Individual Provider under this Agreement upon written notice to Provider upon the occurrence of any of the following events:
 - 1. Provider's or Individual Provider's Washington license or another state or federal license or authorization to do business is reduced, restricted, suspended, or terminated (either voluntarily or involuntarily), or Provider's other applicable license or accreditation necessary to perform any services contemplated by this Agreement is reduced, restricted, suspended, or terminated (either voluntarily or involuntarily); or
 - 2. Provider's or Individual Provider's professional liability coverage as required under this Agreement is reduced below required amounts or is no longer in effect; or
 - 3. Provider or Individual Provider fails to meet Network Subcontractor's or TriWest's credentialing, recredentialing, quality management or utilization management criteria, or fails to comply with quality management or utilization management processes; or
 - 4. Provider or Individual Provider fails to provide material information or provides erroneous information on Provider's credentialing application or recredentialing application; or
 - 5. Provider or Individual Provider is no longer Medicare-eligible, Medicaid-eligible or is not eligible to participate in another government program; or
 - 6. Provider or any one of its officers is arrested or indicted on felony charges that directly or indirectly relate to provisions of services under this Agreement and Network Subcontractor makes a reasonable and good faith determination that the nature of the charges are such that termination is necessary to avoid unnecessary risk or harm to

- TRICARE Beneficiaries that could occur during the pendency of the criminal proceedings; or
7. This Agreement is determined to be non-compliant with TRICARE policy, as promulgated by TMA.
- D. Material Breach - Either Party may terminate this Agreement for any material breach of this Agreement by the other Party, but only if that breach is not cured within thirty (30) days after written notice to the breaching Party.
- E. After termination of this Agreement, Provider shall use reasonable efforts to notify any TRICARE Beneficiaries that Provider is no longer a TRICARE provider when TRICARE Beneficiaries seek care from Provider. In addition, Provider shall cooperate with TriWest and Network Subcontractor to ensure a smooth transition for TRICARE Beneficiaries from Provider to another Network Provider.
- F. Termination of this Agreement shall not relieve either Party of any obligation to the other Party in accordance with the terms of this Agreement with respect to services furnished prior to such termination and shall not relieve Provider of the obligation to cooperate with TriWest and Network subcontractor in arranging for the transfer of care of TRICARE Beneficiaries then receiving treatment.
- G. Services Upon Termination - Upon termination of this Agreement, Provider shall continue to provide Covered Services for specific conditions for which a TRICARE Beneficiary was under a Provider's care at the time of such termination so long as TRICARE Beneficiary retains eligibility, until the earlier of (1) completion of such services or (2) TriWest's provision for the assumption of such treatment by another provider. Compensation for continued services authorized by TriWest shall be reimbursed at the amount allowed by TRICARE policy and Federal law.

III. PROVIDER'S RESPONSIBILITIES

- A. Provider agrees to treat TRICARE Beneficiaries according to the terms and conditions of this Agreement and in accordance with all applicable laws, rules and regulations pertaining to TRICARE including, but not limited to, the TRICARE manuals and the Code of Federal Regulations (CFR). Provider shall accept the Reimbursement Rates (less the amount of any Copayments payable by the TRICARE Beneficiary) as the only payment expected from TriWest and TRICARE Beneficiaries for Covered Services, and for all services paid for by the TRICARE program. TRICARE Beneficiaries are responsible only for Copayments. The Reimbursement Rates shall apply to Active Duty and civilian claims, to enrollees and to non-enrollees, and to all TRICARE Beneficiaries whose care is reimbursed by the Department of Defense, regardless of their residence. In no event will Provider be paid for such services more than the TRICARE/CHAMPUS Maximum Allowable Charge (CMAC) or what is permissible under Federal law or TRICARE policy.
- B. Provider shall collect applicable Copayments from TRICARE Beneficiaries. Except as otherwise provided in this Paragraph B., Provider may not bill TRICARE Beneficiaries for any service that is non-covered or disallowed. Provider shall not routinely waive Copayments. Except for Copayments, Provider agrees that in no event (including, but not limited to, nonpayment or breach of this Agreement by TriWest or TriWest's insolvency) shall Provider bill or collect for Covered Services from a TRICARE Beneficiary. This provision shall survive termination of this Agreement. Provider shall not require payment from a TRICARE Beneficiary for any excluded or excludable service that the TRICARE Beneficiary received unless the TRICARE Beneficiary has been properly informed that the services are excludable and has agreed in advance of receiving the services, in writing, to pay for such services. A TRICARE Beneficiary who is informed that care is potentially excludable and proceeds with receiving the potentially

excludable service shall not, by receiving such care, be construed to have entered into an agreement to pay. Provider acknowledges that payment shall not be allowed for a non-Covered Service unless the TRICARE Beneficiary (with the exception of Active Duty personnel) is properly informed and agrees in a separate writing. Any waivers must be specific as to the details of the excluded or non-Covered Service. General agreements to pay, such as those signed by the TRICARE Beneficiary at the time of service, are not evidence that the TRICARE Beneficiary knew specific services were excluded or excludable or that the TRICARE Beneficiary agreed to pay. Notwithstanding any contrary provision herein, Provider shall not bill or collect payments from Active Duty personnel for non-Covered or excludable services.

- C. Provider shall submit claims for Covered Services on behalf of TRICARE Beneficiaries. Provider shall use best efforts to submit claims within thirty (30) days after the provision of the services. No payment shall be made for a claim submitted more than one (1) year after the provision of the Covered Service.
- D. Provider shall participate in Medicare (accept assignment) and submit claims on behalf of all TRICARE and Medicare beneficiaries.
- E. All claims shall be submitted electronically and Provider agrees to the provisions outlined in Exhibit 2.
- F. Provider agrees to being reported to the Department of Veterans Affairs (DVA) as a TRICARE Network Provider. To the extent TriWest and DVA enter into an agreement, Provider agrees to see Veterans Administration (VA) patients and shall accept reimbursement for these patients at the rates set forth in Exhibit 1 to the Agreement. In the event Provider has an existing agreement in effect to provide health care services to the Department of Veteran Affairs patients such VA agreement shall control for any services provided to VA patients.
- G. Provider agrees to being reported to the Civilian Health and Medical Program of the Department of Veterans Affairs (CHAMPVA) as a TRICARE Network Provider. To the extent TriWest and CHAMPVA enter into an agreement Provider agrees to see CHAMPVA patients and shall accept reimbursement for these patients at the rates set forth in Exhibit 1 to this Agreement. In the event Provider has an existing agreement in effect to provide health care services to CHAMPVA patients such CHAMPVA agreement shall control for any services provided to CHAMPVA patients.
- H. Provider shall comply with all applicable Federal laws and regulations and all TRICARE rules, policies and procedures set forth in the TRICARE Provider Handbook, including without limitation credentialing, peer review, referrals, utilization review/management, case management and quality assurance programs and procedures established by TriWest or TRICARE including submission of information concerning Provider and compliance with preauthorization requirements, care approvals, concurrent reviews, retrospective reviews, discharge planning for inpatient admissions and prior authorization of referrals. The TRICARE Provider Handbook, and all rules, policies, and procedures set forth therein, as updated from time to time, shall hereby be incorporated by reference as part of this Agreement.
- I. Provider shall provide and maintain policies of general and professional liability (malpractice) coverage to insure Provider against any claim for damages arising by reason of personal injury or death resulting directly or indirectly from the performance of this Agreement. Such coverage shall be subject to the approval of Network Subcontractor and be in an amount equal to the greater of the highest amount required by law or in the absence of such law, the community standard for such coverage. Provider shall provide Network Subcontractor with a certificate of such coverage upon execution of this Agreement, entitling Network Subcontractor to receive thirty (30) days' prior notice of any change in coverage or termination or expiration of coverage.

If coverage is on a claims-made basis, Provider shall obtain or seek verification from employed physicians proof of Tail Insurance satisfactory to Network Subcontractor upon any termination of coverage and containing an extended reporting endorsement for a period of not less than three (3) years after the termination of this Agreement.

- J. Provider or designee shall make best efforts to attend an initial educational seminar (and periodic update seminars) or participate in web-based training in order to obtain an understanding of the requirements of TRICARE.
- K. Provider's facilities shall be accessible to handicapped individuals as required by applicable Federal and state and/or local laws and regulations.
- L. Provider shall comply with Federal and any applicable state laws and regulations concerning the confidentiality and security of the medical records of TRICARE Beneficiaries.
- M. Immediately upon learning of any actions, policies, determinations or internal or external developments that may have a direct impact on Provider's ability to perform its obligations under this Agreement, Provider must notify Network Subcontractor in writing of any such matters which shall include, but are not limited to:
 - 1. Any change in ownership, specialty services provided, Medicare designation (including but not limited to sole community, critical access, etc.) or location of facility(ies);
 - 2. Action against or lapse of Provider's (or any associated Provider's) license, certification, accreditation or certificate of authority;
 - 3. Loss of hospital privileges;
 - 4. Reduction in insurance coverage below the required limits or termination of insurance coverage;
 - 5. Any activity that compromises the confidentiality and security of the medical records of TRICARE Beneficiaries; and
 - 6. Exclusion or any other penalty from Medicare, Medicaid or any federal health care program.
- N. Provider agrees to provide a TRICARE Beneficiary with a copy of his or her medical record at no charge, to include a narrative summary and other documentation of care within ten (10) business days of the request when the TRICARE Beneficiary or TRICARE Beneficiary's guardian presents (i) a copy of official change of station orders or orders changing the TRICARE Beneficiary's or sponsor's status from Active Duty to retired or separated from service and (ii) a properly executed medical release.
- O. Provider agrees to provide copies of medical records to TriWest within ten (10) business days of TriWest's request, to permit TriWest to conduct peer review, quality assurance and utilization review. At the Provider's request TriWest will reimburse Provider for the cost of photocopying and postage using the same reimbursement as Medicare.
- P. Provider acknowledges and agrees that the National Quality Monitoring Contractor (NQMC) shall be responsible for reviewing requests from TRICARE Beneficiaries and providers for an appeal or reconsideration of certain denials of coverage by TriWest and Provider will cooperate with the NQMC in such appeal process. Provider agrees the NQMC may release all review data obtained by the NQMC to TriWest.
- Q. Provider understands and agrees that all Covered Services provided for TRICARE Prime enrollees, except emergency services, outpatient mental health services, and services provided under a Point of Service option, must be referred from the PCM to a Network Provider or an MTF provider, and authorized by the applicable designee of TriWest.

- R. Provider agrees that TriWest and its designee shall have access, upon demand and at reasonable times, to the books, records and papers of Provider relating to the health care services provided to TRICARE Beneficiaries, to the costs thereof, and to Copayments received by Provider from TRICARE Beneficiaries for Covered Services. TriWest and its designee shall have the right to inspect, at reasonable times, Provider's facilities upon five (5) days' prior notice to Provider. Provider will provide adequate space to TriWest and its designee for the conduct of on-site inspections and reviews and shall cooperate in the conduct of such on-site inspections and reviews. Provider will photocopy and deliver to TriWest or its designee all information required for off-site review by TriWest of Provider's performance under this Agreement within thirty (30) days of a request by TriWest. This section shall survive termination of this Agreement.
- S. If Provider is designated as a specialist, the wait time for visits shall not exceed four (4) weeks. If Provider is designated as a Primary Care Manager, non-emergent, routine visits shall be scheduled within one (1) week and urgent visits within twenty-four (24) hours. The wait time in the Provider's office for non-emergencies shall not exceed thirty (30) minutes from the scheduled appointment time. Provider shall provide typed consultation or referral reports, operative reports, and discharge summaries to the TRICARE Beneficiary's initiating provider within ten (10) working days of the encounter. In urgent/emergent situations, a preliminary report of a consultation shall be conveyed to the TRICARE Beneficiary's initiating provider within 24 hours (unless best medical practices dictate less time is required for a preliminary report) by telephone, fax or other means.
- T. Provider acknowledges and understands that the MTF has the right of first refusal to provide medical services to TRICARE Prime beneficiaries, located in a Prime Service Area, who are referred for any services by their PCM.
- U. Provider acknowledges and agrees that this is not an exclusive agreement, and that neither TriWest nor Network Subcontractor represents, warrants, or guarantees that Provider will be utilized at all by any TRICARE Beneficiary, will elect to use Provider's services, or that Provider will have any guaranteed minimum number of TRICARE Beneficiaries as patients.
- V. Provider agrees that Provider will not discriminate in providing Covered Services under this Agreement against any TRICARE Beneficiary on the basis of his/her enrollment or non-enrollment in TRICARE Prime, source of payment, sex, age, race, color, religion, national origin, health status, or disability.
- W. Provider shall comply with all HIPAA Transaction standards as promulgated by the Secretary, Department of Health and Human Services (DHHS) and any future modifications to those standards that DHHS may promulgate. Provider shall obtain and file claims utilizing a national provider identifier (NPI).
- X. If Provider enters into any Subcontracts with any Subcontractors whereby such Subcontractor assumes any of Provider's duties, responsibilities, or other obligations under this Agreement, Provider assumes full responsibility for credentialing, licensure, and professional liability insurance of said Subcontractor and shall ensure that any such Subcontracts require Subcontractors to comply with the terms and conditions of this Agreement.
- Y. Provider shall be responsible for ensuring its directly employed or contracted professionals maintain applicable state license(s) that are free of any sanctions or restrictions.

IV. ADDITIONAL RESPONSIBILITIES APPLICABLE TO PCM PROVIDERS

- A. Provider agrees to serve as a PCM and to accept the maximum number of beneficiaries as set forth in Exhibit 3. As a PCM, Provider shall be available by telephone or by appointment twenty-four (24) hours per day, seven (7) days per week to ensure timely evaluation of a patient's health

needs. If the Provider is unavailable, it is the responsibility of the Provider to arrange for coverage by a TRICARE certified provider. A covering physician shall be a contracted provider or a provider who accepts assignment (i.e. agrees to accept the TRICARE-determined allowable amount as payment in full for Covered Services and supplies provided to the TRICARE Beneficiary) and shall be subject to TRICARE policies, rules, and regulations, including without limitation, credentialing and certification requirements.

The wait time for visits to the PCM shall not exceed the following:

1. Routine visits - one (1) week;
2. Urgent care - twenty-four (24) hours; and
3. Well visits - four (4) weeks.

In a non-emergency, the wait time in Provider's office shall not exceed thirty (30) minutes from the scheduled appointment time.

- B. As a PCM, Provider agrees to provide or arrange to provide, the preventive services required under the TRICARE Prime program. All referrals by a PCM shall be in accordance with the TRICARE Provider Handbook, and the policies, rules and regulations of TriWest and TRICARE in effect from time to time.

V. PROVIDER DIRECTORY

TriWest may periodically include Provider's name, gender, work address, work fax number and work telephone number, whether the Provider is accepting new patients, specialty and sub-specialty and willingness to accept VA and CHAMPVA beneficiaries in a directory of Network Providers. Provider is responsible for notifying Network Subcontractor of any changes of address, phone or fax number or specialty services rendered within ten (10) business days.

VI. PAYMENT TO PROVIDER

- A. TriWest will use best efforts to process Clean Claims within thirty (30) days of receipt and will make payment directly to Provider for Covered Services rendered by Provider to TRICARE Beneficiaries in accordance with the Reimbursement Rates set forth in Exhibit 1. Provider understands and agrees that Network Subcontractor is not the insurer, payer, guarantor or underwriter of the payment of benefits to Provider and agrees that Network Subcontractor shall not be responsible for payment of any claims submitted by Provider for Covered Services provided to TRICARE Beneficiaries.
- B. TriWest may deny payment for services or supplies deemed by TriWest to be not Medically Necessary or at an inappropriate level under definitions and determinations of TRICARE. TriWest will utilize a standard industry code review system in adjudicating claims and determining appropriate levels of coding.
- C. Payments to Provider may be disallowed or reduced for noncompliance with required utilization review/management programs and procedures, including without limitation failure to obtain a required preauthorization or continued stay approval even if the services are not denied on necessity or appropriateness grounds. In the case of failure to obtain a required preauthorization or continued stay approval, the reduction shall be fifty percent (50%) of the Reimbursement Rate as set forth in Exhibit 1. Amounts that are disallowed or reduced may not be billed to TRICARE Beneficiaries.
- D. Provider understands and agrees that there may be payment adjustments through the remittance or return of underpayments, overpayments, and adjustments for retroactive terminations or denials of coverage.

VII. GENERAL PROVISIONS

A. Amendment

All amendments to this Agreement or any of its Addenda proposed by Provider must be agreed to in writing by Network Subcontractor in advance of the effective date thereof. Any amendment to this Agreement, including any of its Addenda, proposed by Network Subcontractor shall be effective 30 days after Network Subcontractor has given written notice to Provider of the amendment, and Provider has not notified Network Subcontractor in writing of Provider's rejection of the requested amendment within that timeframe.

Amendments required because of legislative, regulatory or legal requirements, including without limitation any and all changes made to TRICARE reimbursement or the TRICARE program and policies, do not require the consent of Provider and will be effective immediately on the effective date thereof.

B. Applicable Law; Jurisdiction; Venue

This Agreement is governed by the laws of the State of Washington and applicable Federal law but without regard to provisions thereof relating to conflicts of law. The Parties consent to the jurisdiction of and to venue for any dispute involving this Agreement in the state courts of the State of Washington or the United States District Court for the District of Washington.

C. Assignment

Except as permitted in this Agreement, neither Party may assign or transfer any right, benefit, obligation or duty under the terms of this Agreement to any third party without the prior written consent of the other Party and TriWest as the third party beneficiary, except that Network Subcontractor may assign this Agreement or any responsibilities hereunder to TriWest.

D. Authority

Each person signing this Agreement certifies that he/she has the appropriate authority to bind the respective Party.

E. Network Subcontractor's Relationship to The Blue Cross and Blue Shield Association

Provider expressly acknowledges Provider understands that this Agreement constitutes an agreement between Provider and Network Subcontractor, that Network Subcontractor is an independent corporation operating under a license from The Blue Cross and Blue Shield Association (the "Association"), an association of independent Blue Cross and Blue Shield Plans, permitting Network Subcontractor to use the Blue Cross and Blue Shield Service Marks in the State of Washington, and that Network Subcontractor is not contracting as the agent of the Association.

Provider further acknowledges and agrees that he/she/it has not entered into this Agreement based upon representations by any person, entity or organization other than Network Subcontractor and that no person, entity or organization other than Network Subcontractor shall be held accountable or liable to Provider for any of Network Subcontractor's obligations to Provider created under this Agreement. This paragraph shall not create any additional obligations whatsoever on the part of Network Subcontractor other than those obligations created under other provisions of this Agreement.

F. Compliance

Provider warrants and certifies that Provider is in compliance with all local and Federal laws applicable to provider's business of providing health care services, including but not limited to, the provisions of the Americans with Disabilities Act and the Health Insurance Portability and Accountability Act as they may apply to Provider.

G. Coordination of Benefits/Third-Party Liability

Provider agrees to make inquiries of TRICARE Beneficiaries regarding other health insurance coverage. If there is another entity providing coverage for the TRICARE Beneficiary, Provider shall bill that entity first and provide information regarding that carrier to TriWest when it submits the claim to TriWest for Covered Services provided to the TRICARE Beneficiaries. TRICARE coverage shall always be secondary, except when TRICARE Beneficiaries have coverage with Indian Health Services or Medicaid. Provider further agrees to cooperate in subrogation, Workers' Compensation and other third-party recovery programs to the extent permitted or required by applicable law.

H. Dispute Resolution

1. If Provider believes that TriWest incorrectly denied all or part of a claim and desires to obtain a review of the benefit determination, Provider shall, within ninety (90) days of initial determination:
 - a. submit a written request for review to TriWest, per the TRICARE Provider Handbook; and
 - b. include in the written request the items of concern regarding TriWest's determination and all additional information (including medical information) supporting Provider's belief that the denial was incorrect.

On the basis of the information supplied with the request for review, together with any other information available to it, TriWest will review its prior determination. Provider will be notified in writing of TriWest's decision and the reasons for the determination within sixty (60) days of TriWest's receipt of the request for review.

If Provider still believes that TriWest's determination of payment or non-payment is incorrect and/or has information that was not previously available for review when submitted to TriWest, Provider may direct a second request for review in writing to TriWest within sixty (60) days of receipt of the prior determination. The TriWest reviewer will follow the procedures outlined in the TRICARE Provider Handbook for processing second reviews.

2. In the event that any claim or controversy arising out of or relating to this Agreement, or any claimed breach thereof, cannot be resolved by the Parties as provided in Section VII Paragraph H. Subsection 1 above or in the normal course of business, each Party shall designate a member of its senior management to meet in an attempt to resolve the dispute.

A dispute that cannot be resolved to the satisfaction of the Parties in this manner within one hundred twenty (120) days shall be referred for binding arbitration in accordance with the commercial dispute arbitration rules of the American Arbitration Association or such other rules as may be agreed to by the Parties.

Judgment upon an award in arbitration may be entered in any court of competent jurisdiction, or application may be made to such court for a judicial acceptance of the award and enforcement, as the law of the state having jurisdiction may require or allow.

I. Entire Agreement

This Agreement, including referenced exhibits and any documents incorporated by reference such as the TRICARE Provider Handbook, contains the entire understanding of the Parties and supersedes all prior agreements between the Parties with respect to the same subject matter.

J. Mutual Indemnification

Provider shall hold harmless and indemnify Network Subcontractor and TriWest for, from, and against any Provider-related claims, losses, damages, liabilities, costs, expenses or obligations arising out of or resulting from Provider's wrongful or negligent conduct in the performance of this Agreement including, but not limited to, the provision of health care services by Provider. Network Subcontractor shall hold harmless and indemnify Provider for, from, and against any losses, damages, liabilities, costs, expenses or obligations arising out of or resulting from Network Subcontractor's wrongful or negligent conduct in the performance of this Agreement.

K. Notice

All notices and other communications to a Party must be in writing, hand delivered, delivered by prepaid commercial courier service with tracking capabilities, faxed, or delivered by the U.S. mail to the address listed on the signature page. The Parties may change the address of record by notifying the other Party of the new address. Notice shall be complete upon the earlier of actual receipt or five (5) days after being deposited into the U.S. mail. Notices and other communications in writing need not be mailed either by registered or certified mail, although a signed return receipt received through the U.S. Post Office shall be conclusive proof between the Parties of delivery of any notice or communication and of the date of such delivery.

L. Paragraph Headings

The paragraph headings used in this Agreement have been inserted for convenience of reference only and do not in any way modify or restrict the meaning of any of the terms or provisions of this Agreement.

M. Relationship of the Parties

The relationship of the Parties is not and shall not be construed or interpreted to be a partnership, joint venture or agency. The relationship between the Parties is an independent contractor relationship.

N. Release

PROVIDER ACKNOWLEDGES THAT A NUMBER OF FUNCTIONS UNDER THIS AGREEMENT WILL BE PERFORMED BY TRIWEST AS SET FORTH IN THIS AGREEMENT, INCLUDING, BUT NOT LIMITED TO, CLAIMS PAYMENT AND UTILIZATION REVIEW. PROVIDER AGREES TO THIS DELEGATION OF FUNCTIONS TO TRIWEST AND FURTHER AGREES THAT NETWORK SUBCONTRACTOR SHALL NOT BE LIABLE FOR PAYMENTS UNDER THIS AGREEMENT OR FOR NEGLIGENT OR INTENTIONAL WRONGDOING OR BREACH OF THIS AGREEMENT BY TRIWEST. TRIWEST SHALL BE SOLELY LIABLE FOR ITS ACTIONS AND INACTIONS AND FOR ALL PAYMENTS DUE TO PROVIDER UNDER THIS AGREEMENT. PROVIDER CONFIRMS THAT TRIWEST'S RESPONSIBILITY FOR PAYMENT OF ANY SUCH CLAIMS IS LIMITED SOLELY TO ADVANCING PAYMENT ON BEHALF OF, AND AS A

FISCAL INTERMEDIARY AND AGENT FOR, THE DEPARTMENT OF DEFENSE,
SUBJECT TO APPLICABLE FEDERAL LAW AND TRICARE POLICY.

O. Third Party Beneficiary

TriWest shall be a third-party beneficiary of this Agreement and shall be entitled to enforce Provider's obligations under this Agreement, and Provider shall be entitled to enforce TriWest's obligations under this Agreement.

P. Trade Name Ownership

The Parties acknowledge that Network Subcontractor has the sole right to use, in Washington, the "Blue Cross" and "Blue Shield" trade names and service marks. Provider shall not use these names and marks without first obtaining the Network Subcontractors express written consent.

Q. Waiver

There shall be no waiver of any term, provision or condition of this Agreement unless in writing and signed by both Parties.

R. Severability

If any provision of this Agreement is deemed illegal, unenforceable or in conflict with any law of a Federal, state or local government having jurisdiction over this Agreement, the validity of the remaining sections shall not be affected. This includes, without limitation, a change in TRICARE law or policy which is inconsistent with any provision of this Agreement. In addition Network Subcontractor shall replace the illegal, unenforceable or invalid provision(s) with a new provision(s), which, being valid, legal and enforceable, comes closest to the intention of the Parties concerning the illegal, unenforceable or invalid provision(s). Network Subcontractor shall deliver to Provider, in accordance with Section VII.K supra, replacement language to effectuate the new provision(s). The replacement language shall specify its effective date and shall take effect without signatures of the Parties.

S. Construction

The Parties to this Agreement have both had an equal opportunity to review, discuss and negotiate the language and terms of this Agreement and therefore both Parties acknowledge and agree that there shall not be any presumption to construe ambiguous or disputed language against the drafter.

T. Survivability

The obligations of Sections II. E., III. A., III. B., III. C., III. I., VII. H., VII. J., VII. N. and VII. S. shall survive the termination of this Agreement.

Signatures appear on last page

Exhibit 1
Reimbursement Rates

PROVIDER NAME: RadiantCare Radiation Oncology

TIN: 912018691

Provider acknowledges that, as set forth in Section III Paragraph A. of the Agreement, this Exhibit 1 sets forth is the exclusive reimbursement he/she will receive for the provision of Covered Services except for applicable Copayments.

In no event will Provider be paid more than what is permissible under Federal law or TRICARE policy. As federal law or regulation requires change in TRICARE reimbursement or the methodology to compute any TRICARE payment, this Exhibit is automatically updated to comply with said change.

The terms of this Agreement, specifically including this Exhibit, are applicable for all services billed under this TIN.

Provider agrees to accept the lesser of a 05% discount off the TRICARE/CHAMPUS Maximum Allowable Charge (CMAC) or a 20% discount off Provider's billed charge as the Reimbursement Rate.

Exhibit 2

The following guidelines are necessary in order to submit claims electronically to TriWest via WPS:

- In transmitting EDI, Provider will transmit such claims edited and formatted according to the specifications indicated within the most current Provider User Guide or the ANSI X12 837 Implementation Guide and EDI Companion Guide supplied by WPS. Provider understands the WPS Provider User and EDI Companion Guide are proprietary and are authorized for use only by Provider and its employees working on its behalf to transmit such EDI and that any other use or distribution of the WPS Provider User Guide or EDI Companion Guide is strictly prohibited without the express written consent of WPS. WPS shall be the final authority in resolving any disputes about how electronic data shall be submitted.
- Provider agrees that all claims submitted via EDI, for all legal and other purposes, will be considered signed by the Provider or Provider's authorized representative.
- Provider agrees to maintain a patient signature file. Provider understands WPS may validate through file audits, those claims submitted via EDI which are included in any quality control or sampling method required by WPS. Provider understands if no signed authorization is on file, an authorization must be obtained by the Provider from the patient prior to EDI submission to WPS.
- Provider acknowledges that WPS and Network Subcontractor shall have no obligation with respect to the content of the information in claims either to verify, check or otherwise inspect the information supplied by the health care provider, except to reformat the claim data to the specification required by TriWest or TMA. Provider further acknowledges that TriWest will determine whether Provider has submitted enough information in the EDI claims in order to determine the completeness, accuracy and validity of the information and claims and that source documents for claims data are the responsibility of the Provider.

Primary Care Manager Status

[illegible]

Established patients only

Preschool

Adolescent

Adult

Children

Geriatric

Intending to be legally bound, the Parties have executed this Agreement as of its Effective Date.

Network Subcontractor
Regence BlueShield, a Washington Nonprofit Corporation

Provider

By: _____
Signature

Beth Johnson
Vice President, Provider Services Washington

Date: _____

Whose main address is:

1800 Ninth Avenue

Fax # (206) 332-6145

Accepted by TriWest:

TriWest Healthcare Alliance Corp.

RadiantCare Radiation Oncology
Name

Radiation Oncology
Specialty

91-2018691
Tax ID

By: _____
Signature

Date: 8/14/12

Whose main address is:

4525 3rd Ave S.E. Suite 100
Lacey, WA 98503

Fax # 360-412-8970

Signature

Kenneth L. Farmer, Jr., M.D.
Executive Vice President & Chief Operating Officer

Whose main address is:

P.O. Box 42049
Phoenix, AZ 85053
Fax # (866) 867-7925